



SPONSOR: Sen. Buckson & Rep. Michael Smith
Sens. Pettyjohn, Wilson; Reps. Hilovsky, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 222

AN ACT PROPOSING AN AMENDMENT TO ARTICLE II AND ARTICLE III OF THE DELAWARE
CONSTITUTION RELATING TO TERM LIMITS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members
elected to each house thereof concurring therein):

Section 1. Amend § 3, Article II of the Delaware Constitution by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 3. Qualifications of members; commencement of terms of members; continuing residency ~~required~~; required;
term limits.

(f) No person may be elected a sixth time to be a Senator or a ninth time to be a Representative.

Section 2. Amend § 21, Article III of the Delaware Constitution by making deletions as shown by strike through
and insertions as shown by underline as follows:

§ 21. Election and term of office for certain state officers.

The terms of office of the Attorney General, the Insurance Commissioner, the Auditor of Accounts, and the State
Treasurer shall be ~~4 years~~; years and these officers may not be appointed or elected to serve more than 2 terms for the same
office. These officers shall be chosen by the qualified electors of this State at general elections and be commissioned by the
Governor.

Section 3. This Act takes effect immediately on enactment and is implemented for each office that is subject to this
Act as of the next election held for that office.

Section 4. A term of office completed before the implementation date of this Act for that office may not be
included in determining a candidate's eligibility for that office.

SYNOPSIS

This Act is the first leg of a constitutional amendment that would create term limits for legislators and the Attorney
General, Insurance Commissioner, Auditor of Accounts, and State Treasurer.

Specifically, this Act provides:

(1) That an individual may not be elected to be a Senator more than 5 times or a Representative more than 8 times.

(2) That an individual may not be appointed or elected to serve more than 2 times each as the Attorney General,
Insurance Commissioner, Auditor of Accounts, or State Treasurer.

This Act takes effect on the passage of its second leg in the 154th General Assembly. Sections 3 and 4 of this Act make clear that holding an office before the implementation of this Act for that office will not be counted toward the newly instituted term limits.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.

Author: Senator Buckson